IN THE PESHAWAR HIGH COURT, PESHAWAR
Present:
* Hon'ble Mr. Justice Munib Akhtar
* Hon'ble Mr. Justice Muhammad Ali Mazhar

Crl. Appeal No. 121/2018
Citation: PLD 2018 Lah 283
Matter ID: MAT-FAMI-2018-007

BETWEEN:
Muhammad Tariq Khan ... Appellant / Petitioner
VERSUS
Federation of Pakistan ... Respondent

LEGAL TOPIC: Family - Khula & Dower Maintenance
STATUTES CITED: Muslim Family Laws Ordinance 1961, S. 7, S. 9, Family Courts Act 1964, S. 5

JUDGMENT
1. This judgment disposes of Crl. Appeal No. 121/2018, directed against the final judgment rend ered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attor ney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Con stitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied i n Muslim Family Laws Ordinance 1961, S. 7 were disregarded, thereby causing grave miscarriage o f justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on rec ord clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
In view of the clear mandate of law laid down under Muslim Family Laws Ordinance 1961, S. 7 and guaranteed fundamental rights, this petition is allowed. The impugned judgment is set aside an d matter is remanded for decision afresh on merits.

Decided on: 25 October 2018.